

Court No. - 21

Case :- WRIT - C No. - 41368 of 2016

Petitioner :- Praveen Bano

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ram Prakash Shukla, Babita Shukla

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Praveen Bano claims to be the tenant of premise in question and her submission is that she has ongoing dispute with the landlord and in this direction it had been contended that proceedings are ongoing. The petitioner has also proceeded to make a mention that earlier she has been before this Court by preferring a writ petition under Art.227 of the Constitution of India and this Court on 2nd May, 2016 proceeded to pass following order:-

"Heard Sri R.P. Shukla and Ms. Mahbuba Fatima holding brief of Sri Mahboob Ali for the respondent-5.

The petition has been filed for issuing a direction to the court below to decide the application of the petitioner under Order 39 Rule 2A, CPC.

The petition is disposed of with the direction to court below to decide the application of the petitioner under Order 39 Rule 2A CPC along with suit expeditiously without granting unnecessary adjournments to either of the parties.

The Executive Engineer, Electricity Distribution Khand, near Deen Dayal Hospital, Pandeypur, Varanasi is directed to restore the electricity connection in the residential accommodation of the petitioner within 10 days after the petitioner completes all the formalities about it. On the production of a certified copy of this order before the Executive Engineer, he will inform the petitioner in writing within three days about the required formalities."

The petitioner submits that thereafter she has proceeded to fulfil each and every pre-requisite formalities and thereafter the Sub Divisional Officer has proceeded to issue a letter asking the petitioner to fulfil various formalities. The petitioner at this juncture is once again before this Court with a prayer that writ in the nature of mandamus be issued directing the respondent no.2 to restore the electricity connection in the rental residential accommodation of the petitioner within stipulated period of time.

On the matter being taken up Shri Mahboob Ahmad, Advocate contends that once the petitioner is claiming for new connection under the U.P. Electricity Supply Code, 2005 (in short "Code of 2005"), then she has to fulfil all the pre-requisite formalities as are provided for under Annexures 4.2 and 4.4 of the Code of 2005 and without completing such formalities, the petitioner is before this Court

We have proceeded to examine the request that has been so made on behalf of the petitioner as well as the objection that has been so raised by Shri Mahboob Ahmad, Advocate and what we find that in the present case pursuant to the directives issued by this Court the request of the petitioner has been considered and thereafter the petitioner has been asked to fulfil certain pre-requisite formalities and the petitioner instead of fulfilling the same is before this Court.

Consequently, the prayer that has been so made by the petitioner cannot be accorded by us unless and until she proceeds to fulfil pre-requisite formalities that are provided for in Annexures 4.2 and 4.4 of the Code of 2005.

Consequently, as far as we are concerned, we are not according any relief to the petitioner but certainly we provide that in case the petitioner fulfils the pre-requisite formalities that are provided for under Annexures 4.2 and 4.4 of the Code of 2005, then in that event the competent authority would proceed to consider the request of the petitioner preferably within next two weeks from the date of completion of formalities that are required to be fulfilled under Annexures 4.2 and 4.4 of the Code of 2005.

The writ petition is **disposed of** accordingly.

Order Date :- 5.9.2016

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